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Inventor(s)	Beyer; Morten

Orthopedic implant kit

Abstract

An orthopedic implant kit comprising a lockable poly-axial screw, a tissue dilatation sleeve, a screw driver, a screw extender, a rod, rod-reduction device, a set screw driver, a torque limiting device and a screw releasing device.

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References Cited

U.S. PATENT DOCUMENTS

Patent No.	Issued Date	Patentee Name	U.S. Cl.	CPC
3650393	12/1971	Reiss	N/A	N/A
4834757	12/1988	Brantigan	N/A	N/A
5263937	12/1992	Shipp	606/167	A61B 17/3417
5304119	12/1993	Balaban	604/511	A61M 31/00
5354302	12/1993	Ko	604/161	A61B 1/00087
5669909	12/1996	Zdeblick	N/A	N/A
5728098	12/1997	Sherman	N/A	N/A
5752970	12/1997	Yoon	604/167.03	A61B 17/3498
5797918	12/1997	McGuire	N/A	N/A
5814073	12/1997	Bonutti	606/232	A61B 17/3439
5904685	12/1998	Walawalkar	606/104	A61F 2/0805
5913860	12/1998	Scholl	N/A	N/A
6113601	12/1999	Tatar	N/A	N/A
6368321	12/2001	Jackson	N/A	N/A
6371968	12/2001	Kogasaka et al.	N/A	N/A
6423064	12/2001	Kluger	N/A	N/A
6551316	12/2002	Rinner	N/A	N/A
6644087	12/2002	Ralph	N/A	N/A
6716214	12/2003	Jackson	N/A	N/A
6726699	12/2003	Wright	606/185	A61B 17/3421
6743231	12/2003	Gray	N/A	N/A
6849064	12/2004	Hamada	604/164.01	A61B 17/3439
6929606	12/2004	Ritland	600/210	A61B 17/1757

6939318	12/2004	Stenzel	604/60	A61B 17/3468
7056329	12/2005	Kerr	606/190	A61B 17/3496
7066937	12/2005	Shluzas	N/A	N/A
7079883	12/2005	Marino	128/898	A61B 17/3423
7144393	12/2005	DiPoto	606/1	A61B 17/3439
7160300	12/2006	Jackson	N/A	N/A
7179225	12/2006	Shluzas et al.	N/A	N/A
7204851	12/2006	Trieu	623/17.11	A61F 2/4611
7250052	12/2006	Landry	606/86A	A61B 17/7085
7374534	12/2007	Dalton	600/222	A61B 17/3439
7473256	12/2008	Assell	606/90	A61B 17/1757
7491168	12/2008	Raymond et al.	N/A	N/A
7520879	12/2008	Justis	N/A	N/A
7527638	12/2008	Anderson	N/A	N/A
7588575	12/2008	Colleran	N/A	N/A
7588588	12/2008	Spitler	606/279	A61B 17/7082
7604655	12/2008	Warnick	N/A	N/A
7651502	12/2009	Jackson	N/A	N/A
7666189	12/2009	Gerber et al.	N/A	N/A
7691129	12/2009	Felix	N/A	N/A
7691132	12/2009	Landry	N/A	N/A
7708744	12/2009	Soma	606/108	A61M 25/09041
7744629	12/2009	Hestad et al.	N/A	N/A
7749232	12/2009	Salerni	N/A	N/A
7749233	12/2009	Farr	606/86A	A61B 17/7085
7758617	12/2009	Lott	606/255	A61B 17/7086
7766920	12/2009	Ciccone	606/86R	A61B 17/862
7811288	12/2009	Jones	N/A	N/A
7842044	12/2009	Runco et al.	N/A	N/A
7846093	12/2009	Gorek	600/206	A61B 17/7002
7862587	12/2010	Jackson	N/A	N/A
7874981	12/2010	Whitman	600/184	A61B 17/3468
7892238	12/2010	DiPoto	606/103	A61B 17/7002
7892259	12/2010	Biedermann et al.	N/A	N/A

7922725	12/2010	Darst Rice et al.	N/A	N/A
7931673	12/2010	Hestad et al.	N/A	N/A
7951172	12/2010	Chao	N/A	N/A
7967821	12/2010	Sicvol et al.	N/A	N/A
8016832	12/2010	Vonwiller et al.	N/A	N/A
8016862	12/2010	Felix et al.	N/A	N/A
8034086	12/2010	Iott	N/A	N/A
8043343	12/2010	Miller	606/279	A61B 17/7038
8052724	12/2010	Jackson	N/A	N/A
8088163	12/2011	Kleiner	N/A	N/A
8114085	12/2011	Von Jako	N/A	N/A
8128667	12/2011	Jackson	N/A	N/A
8137356	12/2011	Hestad et al.	N/A	N/A
8152810	12/2011	Jackson	N/A	N/A
8167911	12/2011	Shluzas et al.	N/A	N/A
8197519	12/2011	Schlaepfer	N/A	N/A
8246538	12/2011	Gorek	600/206	A61B 17/0293
8246665	12/2011	Butler et al.	N/A	N/A
8262662	12/2011	Beardsley	N/A	N/A
8262704	12/2011	Matthis et al.	N/A	N/A
8282604	12/2011	Gresham	604/167.06	A61B 17/3421
8317796	12/2011	Stihl et al.	N/A	N/A
8366747	12/2012	Shluzas	N/A	N/A
8372121	12/2012	Capote	N/A	N/A
8372131	12/2012	Hestad	623/1.2	A61F 2/966
8382805	12/2012	Wang et al.	N/A	N/A
8394109	12/2012	Hutton et al.	N/A	N/A
8409083	12/2012	Mangiardi	600/184	A61B 17/3421
8465546	12/2012	Jodaitis	N/A	N/A
8469960	12/2012	Hutton	N/A	N/A
8562652	12/2012	Biedermann	N/A	N/A
8602984	12/2012	Raymond	600/219	A61B 17/02
8603094	12/2012	Walker et al.	N/A	N/A
8603145	12/2012	Forton	N/A	N/A
8608746	12/2012	Kolb et al.	N/A	N/A
8617218	12/2012	Justis et al.	N/A	N/A
8636783	12/2013	Crall et al.	N/A	N/A
8734515	12/2013	Frey	606/90	A61B 17/025
8747407	12/2013	Gorek	606/267	A61B 17/0206
8834527	12/2013	Hutton	606/279	A61B 17/7037
8858621	12/2013	Oba	623/2.11	A61B 17/3468
8870878	12/2013	Gorek	N/A	N/A

8876710	12/2013	Ferreira	600/206	A61B 17/3439
9050139	12/2014	Jackson	N/A	N/A
9066758	12/2014	Justis et al.	N/A	N/A
9066761	12/2014	McBride et al.	N/A	N/A
9078769	12/2014	Farin	N/A	A61F 2/4465
9101401	12/2014	Dalton et al.	N/A	N/A
9138261	12/2014	Di Lauro et al.	N/A	N/A
9204909	12/2014	Rezach et al.	N/A	N/A
9211143	12/2014	Barry	N/A	N/A
9211149	12/2014	Hoefer et al.	N/A	N/A
9326798	12/2015	Kolb et al.	N/A	N/A
9408649	12/2015	Felix et al.	N/A	N/A
9492209	12/2015	Biedermann et al.	N/A	N/A
9526537	12/2015	Meyer et al.	N/A	N/A
9554789	12/2016	Overes	N/A	A61B 90/57
9585702	12/2016	Hutton	N/A	N/A
9655653	12/2016	Lindner et al.	N/A	N/A
9668754	12/2016	Pfeiffer	N/A	A61B 17/1604
9707019	12/2016	Miller et al.	N/A	N/A
9795771	12/2016	Trieu	N/A	A61M 29/02
9814488	12/2016	Tatsumi	N/A	A61B 17/3421
9924982	12/2017	Jackson	N/A	N/A
9962197	12/2017	Dandaniopoulos et al.	N/A	N/A
9968378	12/2017	Johnson	N/A	N/A
10194967	12/2018	Baynham	N/A	A61B 17/7004
10258228	12/2018	Genovese	N/A	A61B 1/32
10398543	12/2018	Solar	N/A	A61F 2/12
10925592	12/2020	Sandhu	N/A	A61B 17/3468
11154286	12/2020	Seifert	N/A	A61B 17/3462
11272835	12/2021	Hsu	N/A	A61B 1/00135
11464577	12/2021	Bush, Jr.	N/A	A61B 17/162
11590326	12/2022	Wheeler	N/A	A61M 25/0668
11707267	12/2022	Sweeney	600/201	A61B 50/30
11744447	12/2022	Thommen	606/90	A61B 1/00154
11903620	12/2023	Richter	N/A	A61B 17/7091
2002/0193822	12/2001	Hung	606/198	A61B 17/3439

2003/0114860	12/2002	Cavagna	N/A	N/A
2003/0191371	12/2002	Smith	600/210	A61B 17/02
2004/0144149	12/2003	Strippgen	N/A	N/A
2004/0243139	12/2003	Lewis	606/301	A61B 17/8891
2005/0131408	12/2004	Sicvol	N/A	N/A
2005/0192570	12/2004	Jackson	N/A	N/A
2005/0192579	12/2004	Jackson	N/A	N/A
2005/0240197	12/2004	Kmiec	N/A	N/A
2005/0245928	12/2004	Colleran	N/A	N/A
2006/0036244	12/2005	Spitler et al.	N/A	N/A
2006/0079903	12/2005	Wong	606/328	A61B 17/8891
2006/0089644	12/2005	Felix	N/A	N/A
2006/0106415	12/2005	Gabbay	606/198	A61B 17/3468
2006/0111712	12/2005	Jackson	N/A	N/A
2006/0111715	12/2005	Jackson	N/A	N/A
2006/0212062	12/2005	Farascioni	606/191	A61B 17/3439
2006/0217719	12/2005	Albert	N/A	N/A
2006/0235427	12/2005	Thomas	N/A	N/A
2006/0241599	12/2005	Konieczynski	N/A	N/A
2007/0078460	12/2006	Frigg	N/A	N/A
2007/0106123	12/2006	Gorek	N/A	N/A
2007/0198045	12/2006	Morton	606/191	A61M 29/00
2007/0233091	12/2006	Naifeh	N/A	N/A
2007/0239159	12/2006	Altarac	N/A	N/A
2007/0261868	12/2006	Gross	N/A	N/A
2007/0270866	12/2006	Von Jako	N/A	N/A
2007/0270875	12/2006	Bacher	606/90	A61B 17/025
2008/0012111	12/2007	Pu	N/A	N/A
2008/0039839	12/2007	Songer	N/A	N/A
2008/0114403	12/2007	Kuester	606/264	A61B 17/7037
2008/0119852	12/2007	Dalton	N/A	N/A
2008/0147129	12/2007	Biedermann	N/A	N/A
2008/0154279	12/2007	Schumacher	N/A	N/A
2008/0200918	12/2007	Spitler	N/A	N/A
2008/0243189	12/2007	Purcell	N/A	N/A
2008/0262318	12/2007	Gorek	N/A	N/A
2008/0294172	12/2007	Baumgart	N/A	N/A
2008/0294203	12/2007	Kovach	N/A	N/A
2009/0171391	12/2008	Hutton	N/A	N/A
2009/0204159	12/2008	Justis	N/A	N/A
2009/0221879	12/2008	Gorek	606/279	A61B 17/708
2009/0222044	12/2008	Gorek	606/279	A61B 17/0218

2009/0222045	12/2008	Gorek	N/A	N/A
2009/0281571	12/2008	Weaver	N/A	N/A
2009/0306586	12/2008	Ross	604/93.01	A61B 17/3439
2010/0049003	12/2009	Levy	600/199	A61B 17/3439
2010/0152785	12/2009	Forton et al.	N/A	N/A
2010/0292742	12/2009	Stad	N/A	N/A
2010/0312103	12/2009	Gorek	N/A	N/A
2011/0040328	12/2010	Miller et al.	N/A	N/A
2011/0106179	12/2010	Prevost	N/A	N/A
2011/0166606	12/2010	Stihl et al.	N/A	N/A
2011/0172718	12/2010	Felix et al.	N/A	N/A
2011/0184465	12/2010	Boehm	606/264	A61B 17/7037
2011/0245883	12/2010	Dall	N/A	N/A
2011/0263945	12/2010	Peterson et al.	N/A	N/A
2011/0313460	12/2010	McLean et al.	N/A	N/A
2011/0319896	12/2010	Papenfuss	N/A	N/A
2012/0022575	12/2011	Mire	606/198	A61B 17/0293
2012/0022597	12/2011	Gephart	606/279	A61B 17/7091
2012/0031792	12/2011	Petit	N/A	N/A
2012/0186411	12/2011	Lodahi	N/A	N/A
2013/0012955	12/2012	Lin	606/104	A61M 29/00
2013/0012999	12/2012	Petit	N/A	N/A
2013/0023941	12/2012	Jackson et al.	N/A	N/A
2013/0053896	12/2012	Voyadzis	606/279	A61B 17/1671
2013/0096624	12/2012	Di Lauro et al.	N/A	N/A
2014/0031828	12/2013	Patel	N/A	N/A
2014/0046385	12/2013	Asaad	N/A	N/A
2014/0052187	12/2013	McBride	N/A	N/A
2014/0100613	12/2013	Iott et al.	N/A	N/A
2014/0128878	12/2013	O'Neil	N/A	N/A
2014/0171955	12/2013	Smith	N/A	N/A
2014/0277203	12/2013	Atoulikian	N/A	N/A
2014/0288655	12/2013	Parry	N/A	N/A
2015/0066042	12/2014	Cummins et al.	N/A	N/A
2015/0265322	12/2014	Jackson	N/A	N/A
2015/0351810	12/2014	Lindner et al.	N/A	N/A
2016/0089186	12/2015	Beyer	N/A	N/A
2016/0166304	12/2015	Stad	N/A	N/A
2016/0287294	12/2015	Kubo	N/A	N/A
2016/0346026	12/2015	Bootwala	N/A	N/A
2016/0374825	12/2015	Kleiner	N/A	N/A
2017/0095272	12/2016	Hutton et al.	N/A	N/A
2017/0143384	12/2016	Hutton et al.	N/A	N/A
2017/0181774	12/2016	Cahill	N/A	N/A

2017/0181775	12/2016	Jackson	N/A	N/A
2017/0189082	12/2016	Petit	N/A	N/A
2017/0265892	12/2016	Winegar	N/A	A61B 17/3415
2017/0348037	12/2016	Sexson	N/A	N/A
2018/0146990	12/2017	Manzanares	N/A	A61B 17/7092
2018/0214186	12/2017	Beyer	N/A	N/A
2018/0303631	12/2017	Phan	N/A	N/A
2021/0153968	12/2020	Peterson	N/A	A61B 17/7082
2022/0023513	12/2021	Wheeler	N/A	A61M 1/04

FOREIGN PATENT DOCUMENTS

Patent No.	Application Date	Country	CPC
102026584	12/2010	CN	N/A
102026584	12/2010	CN	N/A
202446242	12/2011	CN	N/A
202497225	12/2011	CN	N/A
203777040	12/2013	CN	N/A
203777040	12/2013	CN	N/A
105662662	12/2015	CN	N/A
1005662662	12/2015	CN	N/A
1/26264	12/2005	EP	N/A
1726264	12/2005	EP	N/A
1854587	12/2006	EP	N/A
1994892	12/2007	EP	N/A
1994902	12/2007	EP	N/A
1994902	12/2007	EP	N/A
2198793	12/2009	EP	N/A
2283787	12/2010	EP	N/A
2283787	12/2010	EP	N/A
2522287	12/2011	EP	N/A
2522287	12/2011	EP	N/A
2692304	12/2013	EP	N/A
2712521	12/1994	FR	N/A
2007283101	12/2006	JP	N/A
2011500267	12/2010	JP	N/A
2011500267	12/2010	JP	N/A
2012507316	12/2011	JP	N/A
2013515580	12/2012	JP	N/A
M273326	12/2004	TW	N/A
9819616	12/1997	WO	N/A
WO 9819616	12/1997	WO	N/A
2005060837	12/2004	WO	N/A
WO 2005060837	12/2004	WO	N/A
2006045089	12/2005	WO	N/A
WO 2006045089	12/2005	WO	N/A
2006091863	12/2005	WO	N/A

WO 2006091863	12/2005	WO	N/A
2006130179	12/2005	WO	N/A
WO 2006130179	12/2005	WO	N/A
2007092870	12/2006	WO	N/A
WO2007092870	12/2006	WO	N/A
2007117366	12/2006	WO	N/A
WO2007117366	12/2006	WO	N/A
2008097974	12/2007	WO	N/A
WO 2008097974	12/2007	WO	N/A
2009055026	12/2008	WO	N/A
2009055034	12/2008	WO	N/A
WO 2009055026	12/2008	WO	N/A
WO 2009055034	12/2008	WO	N/A
2009114422	12/2008	WO	N/A
WO 2009114422	12/2008	WO	N/A
2009137246	12/2008	WO	N/A
WO 2009137246	12/2008	WO	N/A
WO 2010052462	12/2009	WO	N/A
WO 2011080426	12/2010	WO	N/A

OTHER PUBLICATIONS

First Office Action of May 3, 2017 for the State Intellectual Property Office of China (SIPA) for the counterpart application with the Serial No. 201480027310.0—EN translation. cited by applicant
Indian first Office Action dated Sep. 10, 2020 for Application IN 10594/DELNP/2015. cited by applicant

International Search Report mailed Nov. 25, 2014 in International Application No. PCT/IB2014/060979, 5 pages. cited by applicant

Japanese Appeal Decision dated Aug. 18, 2020 for Application No. 2016-513463—translation EN. cited by applicant

Japanese Office Action issued by the Japanese Patent Office in the counterpart Japanese Application No. 2016-513463 Feb. 6, 2018, 9 pages + English translation. cited by applicant

Japanese Office Action issued by the Japanese Patent Office in the counterpart Japanese Application No. 2016-513463 of Aug. 14, 2018 and English translation thereof. cited by applicant

Notification of granting patent right of Jun. 6, 2019 for the State Intellectual Property Office of China (SIPA) for the counterpart application with the Serial No. 201480027310.0. cited by applicant

Office Action of Aug. 20, 2019 from the Japanese Patent Office (“JPO”) for counterpart application with Application Serial No. JP2018-199618 with English Translation. cited by applicant

Opposition against European Patent No. 2 526 888 (EPO Application No. 12 177 688.4) of Apr. 21, 2018, EP counterpart of U.S. Pat. Pub. No. 2017/0189082. cited by applicant

Opposition against European Patent No. 2 526 888, Opponent Response of Mar. 31, 2020. cited by applicant

Second Office Action issued from the European Patent Office (EPO) as an Article 94(3) EPC Communication of Aug. 29, 2018 in the counterpart application with the Serial No. 14 734 227.3. cited by applicant

Second Office Action of Feb. 5, 2018 for the State Intellectual Property Office of China (SIPA) for the counterpart application with the Serial No. 201480027310.0. cited by applicant

Third Office Action issued from the European Patent Office (EPO) as an Article 94(3) EPC Communication of May 3, 2019 for Serial No. 14 734 227.3. cited by applicant

Third Party Observation filed on Jun. 26, 2019 against EPO Patent Application No.

EP20100810769 (Publication No. EP2519180, corresponding to U.S. Pat. Pub. No. 2017/0189082). cited by applicant
Written Opinion of the ISA, mailed Nov. 25, 2014 for International Application No. PCT/IB2014/060979. cited by applicant
International Search Report, mailed Aug. 21, 2020 for International Application No. PCT/IB2020/052857. cited by applicant
Written Opinion of the ISA, mailed Aug. 21, 2020 for International Application No. PCT/IB2020/052857. cited by applicant
Indian Office Action mailed on Feb. 21, 2022, for Divisional Application No. IN 202118009679. cited by applicant
European Search Opinion for Application EP20196814.6 dated Jan. 14, 2021. cited by applicant
European Search Opinion for Application EP20196821.1 dated Jan. 19, 2021. cited by applicant
European Search Report for Application EP20196814.6 dated Jan. 14, 2021. cited by applicant
European Search Report for Application EP20196821.1 dated Jan. 19, 2021. cited by applicant
Japanese Office Action for Application No. JP 2020-073757 dated May 11, 2021 (in JP with translation in EN). cited by applicant

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Background/Summary

CROSS-REFERENCE TO RELATED APPLICATIONS (1) The present application is a divisional application of U.S. Ser. No. 15/939,338, now U.S. Pat. No. 10,888,356, that was filed on Mar. 29, 2018, which is in turn a continuation application of U.S. Ser. No. 14/890,631, now U.S. Pat. No. 10,058,355, that was filed on Nov. 12, 2015, which is a United States national stage application of International patent application PCT/IB2014/060979, filed on Apr. 24, 2014, which designated the United States, and claims foreign priority to International patent application PCT/IB2013/053892, filed on May 13, 2013, the entire contents of all four (4) documents being herewith incorporated by reference.

FIELD OF INVENTION

(1) The present invention relates to orthopedics and more precisely to orthopedic items such as pedicle screws, rods and spine cages. The invention also relates to instruments which are used for manipulating those items.

BACKGROUND

(2) US 2013/0012999 discloses an orthopedic implant kit comprising several items, in particular a pedicle screw fixed to a mounting tube made of two half-shells which can be easily disassembled. Pedicle screws of the prior art can be divided in two main groups: Mono-axial screws: The direction of the screw main axis is fixed with respect the screw head; Poly-axial screws: The orientation of the screw main axis can be freely modified with respect to the screw head.

(3) When implanting a pedicle screw into a bone several steps are needed. For almost each of those steps a dedicated instrument is used.

GENERAL DESCRIPTION OF THE INVENTION

(4) An objective of the present invention is to reduce the number of items which are required for manipulating and fixing an orthopedic implant (pedicle screw, nut, rod, etc. . . .).

(5) Another objective is to reduce the number of instruments for manipulating those items.

(6) Another objective is to facilitate the handling of the instruments.

(7) Those objectives are met with the implant kit and the related items and instruments which are defined in the claims.

(8) In a first embodiment the invention consists in an orthopedic implant kit comprising a lockable poly-axial screw, a tissue dilatation sleeve, a screw driver, a screw extender, a rod, rod-reduction means, a set screw driver, a torque limiting mechanism and a screw releasing instrument.

(9) The lockable poly-axial orthopedic screw according to the invention comprises a head and a threaded portion which form two separate elements, fixed to each other but each element may be independently oriented along a specific direction. The threaded portion may, for instance, rotate around the screw head and may adopt several possible orientations. More precisely, the threaded portion may be oriented anywhere within a conical volume, the top of the cone corresponding to the contact point between the head and the threaded portion.

(10) The screw furthermore comprises a locking element which, when activated, suppresses the relative movement between the threaded portion and the head. This configuration is named “mono-axial” because the threaded portion may be oriented along a single (fixed) axis with respect to the head. According one embodiment the locking element is a clip having a U-shape. In this case the head and the threaded portion contains cavities which are adapted to receive the branches of the U-shape clip.

(11) Preferably, in the mono-axial mode the head may still freely rotate around its own axis, with respect to the threaded portion. Such a mechanism may be obtained with a U-shape clip and with an annular groove located around the upper part of the threaded portion. In this case the branches of the clip are sliding within the annular groove.

(12) In another embodiment the screw head contains at least one longitudinal relief, such as a groove or a ridge, which is dimensioned in a way as to receive a corresponding relief, such as a ridge or a groove, which is located within the distal end of a screw extender.

(13) In another embodiment the screw comprises a concave seat located in the proximal end of the threaded portion and a corresponding convex shape located at the distal part of the screw head. This configuration reduces the screw length and increases the strength and the rigidity of the system.

(14) The screw extender according to the invention comprises a hollow cylindrical body made of two half tubes separated by two opposite longitudinal slots having an open end towards the cylindrical body distal part, this later one being dimensioned to receive and hold a screw head. The cylindrical body furthermore comprises an internal threaded part.

(15) According to one embodiment the cylindrical body is made of a single piece and the distal part is radially expandable by its own elasticity, in such a way as to allow an easy clipping and subsequent releasing of a screw head.

(16) To facilitate its radial expansion, the screw extender may include expanding means, for instance an internal rotatable tube which, when rotated pushes away the two half tubes from each other.

(17) In a preferred embodiment the internal part of the cylindrical body distal end contains at least one relief, such as a ridge or a groove, which is dimensioned to be received within the longitudinal relief of a screw head which includes a corresponding relief, as mentioned previously. With this configuration it hinders the distal part of the half tubes to separate from each other by its own elasticity thus making a very strong attachment between the screw extender and the screw head. An additional benefit is that the relative rotation between the screw head and the cylindrical body is avoided.

(18) In a preferred embodiment a rod reduction instrument is located within the cylindrical body. Advantageously the rod reduction instrument is essentially made of a shaft with a threaded distal part which is the counterpart of the cylindrical body internal threaded part. So when it is rotated within the cylindrical body the shaft may move along the cylindrical body main axis.

(19) In another embodiment a set screw driver is (also or alternatively) located within said

cylindrical body. In this case also, the set screw driver may also essentially be made of a shaft with a threaded distal part.

(20) Advantageously the set screw driver comprises a torque limiting mechanism.

(21) In one embodiment this mechanism includes a breakable pin and a thread free rotatable shaft. The pin is laterally crossing the rotatable shaft and its ends are fixed within the threaded rotatable shaft. The threaded and the threaded free shafts are rotatably linked to each other but when a certain torque is reached the pin breaks and each shaft may freely rotates with respect to the other shaft.

(22) In another embodiment a screw releasing instrument is (also or alternatively) located within said cylindrical body.

(23) Advantageously the screw releasing instrument is essentially made of a shaft with a threaded distal part.

(24) In a particularly interesting embodiment, the same shaft with a threaded distal part is used for the rod reduction instrument (and potential spondylolisthesis), the set screw driver and the screw releasing mechanism.

(25) The tissue dilatation sleeve according to the invention comprises a flexible conical part which is adapted to be temporarily fixed to the distal part of an instrument such as a screw extender as defined in the previous claims.

(26) In one embodiment the conical part is made of several longitudinal flexible blades having each a substantially triangular shape.

Description

DETAILED DESCRIPTION OF THE INVENTION

(1) The invention will be better understood in the following part of this document, with non-limiting examples illustrated by the following figures:

(2) FIG. 1 shows an implant kit according to the invention

(3) FIG. 2 shows an example of a lockable poly-axial pedicle screw according to the invention

(4) FIGS. 3A to 3C are cross-sections and partial cut views of the screw of FIG. 2

(5) FIG. 4 represents different views (complete and partial) of the screw of FIG. 2

(6) FIG. 5 shows the distal part of a screw extender according to the invention, together with the screw of FIG. 2

(7) FIG. 6 is a cross section of the screw extender distal part

(8) FIG. 7 is a global view of a screw extender with a screw

(9) FIGS. 8A to 8C represent the positioning of the rod in the screw head, rod reduction and the tightening of the set screw

(10) FIGS. 9A to 9C illustrate the release of the screw with respect to the screw extender

(11) FIG. 10 shows a screw extender which includes a mechanism for laterally expanding the screw extender distal part

(12) FIG. 11 is another representation of the screw extender of FIG. 10

(13) FIG. 12 shows another embodiment of a pedicle screw according to the invention

(14) FIGS. 13A to 13C show different views of a rotatable shaft which is used in a rod reduction instrument, a set screw driver and a screw releasing instrument

(15) FIGS. 14 and 15 illustrate a torque limiting mechanism

(16) FIGS. 16 and 17 show the use of a tissue dilatation sleeve

(17) FIGS. 18 to 38 show a procedure using an implant kit according to the invention

NUMERICAL REFERENCES USED IN THE FIGURES

(18) 1. Pedicle screw 2. Head 3. Set screw 4. Threaded portion 5. Locking element 6. Screw extender 7. Rod 8. Multi-use instrument upper part 9. Tissue dilatation sleeve 10. Torque driver 11.

Head passage **12**. Threaded portion passage **13**. Branch **14**. Cylindrical body **15**. Slot **16**. Cylindrical body distal part **17**. Ridge **18**. Groove **19**. Screw extender internal threaded part **20**. Multi-use instrument lower part **21**. Conical part **22**. Blade **23**. Half tube **24**. Screw driver **25**. Handle **26**. Multi-use instrument (Rod reduction/Set screw driver/screw release) **27**. Rod inserting instrument **28**. Breakable pin **29**. Lateral pin **30**. Circular groove **31**. Puncturing needle/Guide wire **32**. Concave screw top **33**. Convex upper half ball

(19) The examples below more precisely relate to a thoracolumbar fusion system consisting of pedicle screws and rods combined with single use instruments. A typical pedicle screw system consists of the screw implants and the instruments for placing the screws.

(20) FIG. 1 shows an example of an implant kit according to the invention.

(21) This kit contains a tissue dilatation sleeve **9**, a handle **25**, a rod **7**, a rod inserting instrument **27**, a shaft **26** which can be used as a rod reduction instrument and/or a set screw driver and/or a screw releasing instrument, a pedicle screw **1**, a screw extender **6** and a screw driver **24**.

(22) The lockable poly-axial screw **1** illustrated in particular in FIGS. 2 to 4 includes a head **2** and a threaded portion **4**. FIG. 2 also shows a set screw **3** which may be fixed to the head after the insertion of a rod **7**. The screw **1** furthermore comprises a locking element **5** having a U-shape. When the locking element **5** is fully inserted in the screw head **2** the orientation of threaded portion **4** is blocked with respect to the head **2**. Inversely, when the locking element is retrieved, the threaded portion **4** can be freely oriented with respect to the screw head **2**.

(23) The lockable poly-axial screw according to the invention may therefore be transformed into a mono-axial screw, thus allowing having mono-axial and poly-axial capability in the same product. A blocking system defined previously allows the surgeon to choose if he/she wants to use the screw in mono-axial or poly-axial mode. As mentioned mono-axial capability is achieved by pushing the locking element (clip) **5** and poly-axial capability is achieved by removing the clip **5**. The clip **5** is just an example of a blocking system; other technical solutions can also be imagined such as a pin.

(24) Preferably, in the mono-axial mode the head may still freely rotate around its own axis, with respect to the threaded portion. Such a mechanism may be obtained with a U-shape clip and with an annular groove located around the upper part of the threaded portion. In this case the branches of the clip are sliding within the annular groove.

(25) Any orientation of the axis can be considered when the mono-axial is used, i.e. the screw axis and the screw head may be oriented along different directions.

(26) FIGS. 5 to 7 represent the attachment of a pedicle screw **1** to the distal end **16** of a screw extender **6**, by inserting the screw head **2** within the distal end **16**. In this operation the head **2** is guided with a plurality of ridges **17** located within the distal end **16** and grooves located on the head **2**. With such a system the screw head is better retained within the screw extender **6**.

(27) Any suitable material can be used for the screw extender **6** (plastic, polymer, metal, etc. . . .).

(28) FIGS. 8A to 8C represent the positioning of the rod **7** in the screw head **2**, a rod reduction and the tightening of the set screw **3** in the screw head **2**.

(29) The multi-use instrument **26** (see also FIGS. 13A to 13B) is defined by an upper part **8** and a lower (threaded) part **20**.

(30) The rod **7** may be pushed downwards by rotating the multi-use instrument **26** within the cylindrical body **14**.

(31) After the rod insertion within the head **2**, the set screw **3** is fixed to the head **2** by further rotating the multi-use instrument **26**.

(32) The multi-use instrument **26** is also provided with a torque limiting mechanism (see FIGS. 14 and 15). When the set screw **3** is fixed within the head **2** and the multi-use instrument **26** further rotated, the torque increases, up to a point where the pin **28** breaks. A further rotation of the multi-use instrument **26** has therefore no more effect on the set screw **3**. From that point the further rotation of the multi-use instrument **26** only induces a downwards pressure on the screw head **2**. The screw **1** is therefore progressively separated from the screw extender (see FIGS. 9A to 9C).

(33) This screw releasing mechanism from an instrument offers the possibility to release the screw **1** from the screw extender without laterally expanding the screw extender **6**.

(34) It should be mentioned at this stage that this mechanism is not limited to the release of pedicle screws. Any other item may be used.

(35) To summarize, the same instrument **26** can be used for rod reduction, for fixing a set screw to a screw head and for releasing a screw from a screw extender.

(36) It should be underlined that the invention is not limited to this triple use of the same instrument. A double use is also comprised, for instance rod-reduction and fixation of the screw set to the screw head.

(37) FIGS. **10** and **11** show an alternative solution to attach a pedicle screw to an screw extender, by rotating an inside tube (not illustrated) the half-tubes **23** are expanded by their own elasticity. This allows a screw to be inserted and fixed to it by for example clamping the outer surface around the screw. The same principle can be used as an alternative to detach the screw extender from a screw.

(38) The clamping system also achieves part of its rigidity, by resting on support surfaces on the screw head.

(39) FIG. **12** shows a concave screw top **32**, inside a convex upper half ball **33**, allowing the rod **7** and the set screw **3** to be set lower in the screw head **2**, thus decreasing the total build height, and increasing the strength and rigidity of the system.

(40) FIGS. **16** and **17** represents a tissue dilatation sleeve **9** containing four triangular flexible blades **22** intervened into each other and forming a cone **21**. The cone **21** is mounted at the tip of a screw extender **6**, with a tear off spiral. This allows the tissue to be pushed aside as the screw extender **6** is inserted into a body. Once in place, the surgeon may remove the sleeve **9** while the screw extender remains in the body. Any suitable number of blades can be used for forming the cone.

(41) FIGS. **18** to **38** show a procedure using the items which have been previously presented.

(42) In a first step (FIGS. **18** and **19**) two puncturing guide wires **31** are positioned in the spine.

(43) A first screw extender **6** with a screw **1** attached and surrounded by a dilatation sleeve is then inserted through the tissue (FIGS. **20** and **21**), and along the guide wire **31**. The screw extender **6** is rotated and/or pushed.

(44) A similar operation is carried out with a second screw extender **6** and screw **1** (FIGS. **22** and **23**).

(45) A screw driver **24** is inserted within the screw extender **6**. Its distal end is introduced within the upper part of the screw threaded portion **4**. The screws **1** are then rotated and enter the vertebrae (FIGS. **24** and **25**).

(46) The tissue dilatation sleeves **9** are removed (FIGS. **26** to **28**).

(47) A rod inserting instrument **27** with a rod **7** at its end is transversally crossing the tissue (FIGS. **29** and **30**).

(48) The rod **7** is positioned above the screw head **2** (FIG. **32**) and the multi-use instrument **26** is introduced within the screw extender **6**, to such an extent that the set screw **3** is positioned above the rod **7**, in line with the screw head **2** (FIGS. **31** and **32**).

(49) FIGS. **33** to **36** show the rod placement within the screw heads **2** and the fixation of the set screw **3** within the screw head **2**.

(50) FIGS. **37** and **38** illustrate the screw release from the screw extender **6** and the screw **1**, the rod **7** and the screw set **3** in their definitive location.

(51) The invention is of course not limited to those illustrated examples.

(52) The screw extender according to the invention may be used with mono-axial, poly-axial or lockable poly-axial screws.

Claims

1. An orthopedic implant kit comprising: a screw extender for holding a screw; a tissue dilatation sleeve for removable attachment to the screw extender, the tissue dilatation sleeve comprising: a cylindrical part for surrounding the screw extender, a flexible conical part attached to one end of the cylindrical part, the flexible conical part tapering in direction away from the cylindrical part, and a handle attached to the other end of the cylindrical part for manually pulling and removing the tissue dilatation sleeve from the screw extender along a longitudinal axis of the screw extender, wherein the cylindrical part includes a first opening at said other end of the cylindrical part and the screw extender extends through the first opening, and the handle includes a second opening configured to receive a finger of a user inside the second opening to grip the handle inside the second opening by said finger to pull and remove the tissue dilatation sleeve from the screw extender along a longitudinal axis of the screw extender, the second opening being perpendicular to the first opening when the tissue dilatation sleeve is assembled to the screw extender.
 2. The orthopedic implant kit according to claim 1, wherein the flexible conical part is made of a plurality of longitudinal flexible blades having each a substantially triangular shape, adjacent flexible blades being separated from each other by a gap.
 3. The orthopedic implant kit according to claim 1, wherein the flexible conical part is configured to cover the screw held by a distal part of the screw extender, when the tissue dilatation sleeve is attached to the screw extender.
 4. The orthopedic implant kit according to claim 1, wherein the second opening is formed within a ring that is attached to the other end of the cylindrical part, the ring configured to engage with the finger of the user for pulling and removing the tissue dilatation sleeve from the screw extender along the longitudinal axis.
 5. The orthopedic implant kit according to claim 2, wherein upon manually pulling and removing the tissue dilatation sleeve from the screw extender by the handle, the flexible blades of the conical part are configured to radially bend away from the screw extender, such that the tissue dilatation sleeve can be pulled and removed from the screw extender along the longitudinal axis.
 6. The orthopedic implant kit according to claim 1, wherein the second opening passes fully through the handle.
 7. The orthopedic implant kit according to claim 1, wherein the second opening extends laterally with respect to the screw extender to permit the screw extender to be located inside the first opening and outside the second opening.
 8. The orthopedic implant kit according to claim 1, wherein said one end of the cylindrical part is located at a distal end of the tissue dilatation sleeve, and said other end of the cylindrical part is located at a proximal end of the tissue dilatation sleeve.
 9. The orthopedic implant kit according to claim 1, wherein a longitudinal axis of the second opening of the handle is transverse to a longitudinal axis of the first opening of the cylindrical part.
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